

25VECV06700 25VECV06700

County: los-angeles

Division: Civil Law and Motion

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ARTAK ARUTYUNYAN vs VOLKSWAGEN GROUP OF AMERICA, INC.

July 6,

2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Defendants' Motion
for Protective Order

I.

Background

On November 24, 2025, Plaintiff Artak Aurtyunyan ("Plaintiff") filed a complaint against Defendants Volkswagen Group of America, Inc. ("Defendant") and Does 1 to 10 alleging four causes of action: (1) breach of implied warranty of merchantability; (2) breach of the express warranty; (3) failure to purchase or replace after reasonable number of repair opportunities; and (4) failure to repair within 30 days.

On May 29, 2026, Defendant filed the instant motion for protective order.

On June 11, 2026, Plaintiff filed his opposition.

On June 26, 2026, Defendant filed its reply.

II.

Legal

Standard

Cal. Code of Civ. Proc. § 2031.060 provides, in pertinent part, that “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (CCP § 2031.060(a).) The Court, for good cause shown, may make any order that “justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Id. at (b).)

III.

Discussion

Defendant brings the instant motion that the Court’s May 22, 2026, Order, requiring Defendant to produce certain documents to Plaintiff, will contain “confidential and proprietary information.” (See Motion at p. 2.) Specifically, Defendant declares that good cause exists for a protective order because [t]he automotive industry is extremely competitive. Each automobile manufacturer and distributor is in direct competition with each other in terms of service and customer satisfaction. While each company does similar work, the processes and procedures for doing that work is uniquely and independently developed by each company.” (Lewis Decl. ¶ 6.) “The . . . information and documents include [Defendant]’s policies and procedures for evaluating whether a vehicle qualifies for repurchase or replacement, which embody [Defendant]’s processes, policies, and procedures to develop and apply a pre-litigation customer service apparatus that attempts to comply with all applicable warranty-related consumer protection laws and furthers [Defendant]’s goals of to maximize customer satisfaction and retention.” (Id. at ¶ 7.) The requested information encompasses, inter alia, service bulletins, recalls, repair literature, training, and protocols for addressing consumer complaints relating to vehicles of the same year, make, and model as Plaintiff’s vehicle. (See generally Lewis Decl.)

In opposition, Plaintiff argues that “[Defendant] seeks a blanket protective order covering broad categories of documents that this Court

has already ordered produced Although [Defendant] casually referenced a desire for confidentiality during discovery, it never sought judicial intervention before Plaintiff filed a motion to compel, during the motion-to-compel proceedings, or at the hearing on that motion. Instead, [Defendant] waited until after the Court issued its final order compelling production before seeking protection." (Opposition at 1:25-2:2.) Plaintiff also argues that Defendant relies on "generalized statements" to show good cause and that the public interest weighs against the "blanket confidentiality" sought by Defendant since "[t]he documents [Defendant] seeks to shield concern vehicle defects, repair and diagnostic procedures, warranty administration practices, customer complaints, repurchase and buyback evaluations, and [Defendant]'s internal compliance with California's lemon law obligations." (See generally Opposition.)

Notwithstanding the foregoing, the Court finds good cause for protection of Defendant's internal policies and procedures regarding lemon law actions. Protective orders are frequently sought to prevent disclosure of documents containing "commercially sensitive" information. (See *In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298-299.) Additionally, on April 29, 2026, Defendant provided a Model Stipulation and Protective Order to Plaintiff's counsel, which Plaintiff's counsel refused to sign. (See Motion at 3:7-11.) Therefore, Defendant did seek protection prior to the Court's May 22, 2026, Order for production.

IV.

Conclusion

Based on the foregoing, Defendant's motion for protective order is GRANTED.

The Court stays the enforcement of this Court's May 22, 2026 Order requiring Defendant to produce documents until 15 days after a Protective Order is signed by this Court.

Defendant shall file and serve via email a proposed Protective Order containing the terms and provisions of the Los Angeles Superior court Model Stipulation and Protective Order within 5 days of this ruling. The Court will hold the proposed protective order for 5 days to allow Plaintiff to file and serve via email any objection(s) to same.

Moving party
to give notice.